Civil Liberties

POLS 2311: Government of the United States

Agenda

- Civil Liberties vs Civil Rights
- The Bill or Rights
- Selective Incorporation of the 14th Amendment

DEFINING CIVIL LIBERTIES

Civil Liberties and Civil Rights

- **Civil liberties**: *limitations on government power, intended to protect freedoms upon which governments may not legally intrude*
- **Civil rights**: *guarantees that government officials will treat people equally and that decisions will be made on the basis of merit rather than race, gender, or other personal characteristics*

Civil Liberties and the Constitution

- **Article I, Section 9**:
  - No passage of bills of attainder
  - No ex post facto laws
  - No suspension of the writ of habeas corpus
    - unless required for public safety in cases of rebellion or invasion
- **Bill of Rights**: the first ten amendments to the Constitution
  - Several states wouldn't ratify without a promise to protect civil liberties
- The courts and judicial review

Rights in Conflict

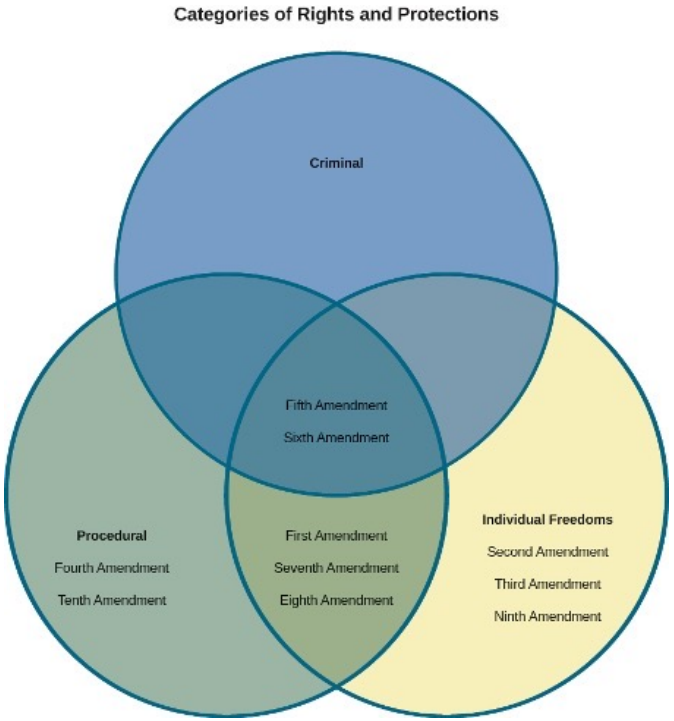
- The Constitution is the basis of our individual rights — but those rights are not limitless, and they often collide with one another or with other social interests
  - *Snyder v. Phelps* (2011): protest speech near a military funeral, weighed against the family's right to grieve in peace
  - *New York Times Co. v. United States* (1971): freedom of the press to publish the Pentagon Papers, weighed against the government's claimed national security interest
- One person's free speech can conflict directly with another's — courts are regularly asked to referee where one right ends and another begins

THE BILL OF RIGHTS

The Bill of Rights is made up of the first 10 amendments to the Constitution and includes the following protections.

- **First Amendment**: protects the freedoms of religion, speech, press, assembly, and petition.
- **Second Amendment**: guarantees the states the right to establish a militia, and individuals the right to bear arms (own weapons).
- **Third Amendment**: ensures that citizens are not required to quarter troops in their home.
- **Fourth Amendment**: protects individuals from unreasonable search and seizure by government agents.
- **Fifth Amendment**: guarantees that an individual will not stand trial more than once for the same offense or testify against him- or herself. Also ensures that no individual is deprived of "life, liberty, or property" without a fair procedure or compensation.
- **Sixth Amendment**: guarantees criminal defendants the right to a speedy and public trial by an impartial jury.
- **Seventh Amendment**: provides the right to a trial by jury in civil cases.
- **Eight Amendment**: protects the accused from excessive bail and cruel and unusual punishments.
- **Ninth Amendment**: guarantees rights not specifically enumerated in the Constitution or Bill of Rights.
- **Tenth Amendment**: Reserves powers not specifically given to the national government for the states and the people.

The Bill of Rights



The First Amendment

Congress shall make no law respecting an establishment of religion, or prohibiting the free exercise thereof; or abridging the freedom of speech, or of the press; or the right of the people peaceably to assemble, and to petition the Government for a redress of grievances.

The Establishment Clause and Free Exercise Clause

I contemplate with sovereign reverence that act of the whole American people which declared that their legislature should "make no law respecting an establishment of religion, or prohibiting the free exercise thereof," thus ***building a wall of separation between Church & State***

Thomas Jefferson (1802), Letter to the Danbury Baptist association in the state of Connecticut

The Establishment Clause and Free Exercise Clause

- **Establishment Clause**: prohibits the government (federal or state) from establishing a state religion or from favoring one religion (or non religion) over another
  - Incorporated against the states in *Everson v. Board of Education* (1947)
- **Free Exercise Clause**: prohibits the government from preventing or controlling religious practices
  - Incorporated against the states in *Cantwell v. Connecticut* (1940)

Freedom of Expression

Free speech, press, assembly, and petition

- **Freedom of expression** refers to the rights protected under the First Amendment's Free Speech, Free Press, Free Assembly, and Right to Petition Clauses
  - Speech, press, and assembly rights often overlap

Free Speech

- **Free Speech Clause**: prohibits the government from suppressing or restricting most forms of speech and symbolic speech (e.g., wearing certain attire, protesting, flag burning, and other forms of non-communicative speech)
  - Includes types of offensive speech, such as hate speech
  - Includes political speech, such as campaign donations by individuals and corporations
  - **Excludes** *incitement*, *true threats*, *fighting words*, *obscenity*, *defamation*

Free Press, Assembly, Petition

- **Free Press Clause**: prohibits the government from restricting the right of the press to disseminate news and express opinions
- **Free Assembly Clause**: prohibits the government from restricting peaceable assemblies
- **Right to Petition Clause**: permits individuals or groups to petition the government, including writing and calling elected representatives, lobbying government officials, and filing lawsuits with the courts


What is the 2nd most important principle of our nation?
Guns.

The Second Amendment

> *A well regulated Militia, being necessary to the security of a free State, the right of the people to keep and bear Arms, shall not be infringed*.

- *well regulated militia* or *right of the people*?

Gun Control

- After the Civil War, many states introduced laws to prevent former slaves from possessing or carrying firearms
- In the 1930s, governments introduced laws restricting ownership and sale of certain types of firearms

Gun Rights

Do *individuals* have a right to possess fire arms?

- **Yes**. As of when?
- *District of Columbia v. Heller* (2008)
  - an **individual** right to bear arms *for traditionally lawful purposes, such as self-defense within the home*
  - Unconnected to service in an organized militia
- *McDonald v. Chicago* (2010)
  - incorporated the individual right to bear arms into the Due Process Clause of the Fourteenth Amendment

The Third Amendment

The Third Amendment prevents the federal government from quartering soldiers in the home of any person without consent during peace time or, during wartime, in a manner not authorized by law

- *Quartering Acts*: required American colonists to house British troops in their homes

The Fourth Amendment

The right of the people to be secure in their persons, houses, papers, and effects, against unreasonable searches and seizures, shall not be violated, and no Warrants shall issue, but upon probable cause, supported by Oath or affirmation, and particularly describing the place to be searched, and the persons or things to be seized

The Fourth Amendment

- *secure in their persons*
- *unreasonable searches and seizures*
- Search warrant
- Probable cause

The Fifth Amendment

No person shall be held to answer for a capital, or otherwise infamous crime, unless on a presentment or indictment of a Grand Jury, except in cases arising in the land or naval forces, or in the Militia, when in actual service in time of War or public danger; nor shall any person be subject for the same offence to be twice put in jeopardy of life or limb; nor shall be compelled in any criminal case to be a witness against himself, nor be deprived of life, liberty, or property, without due process of law; nor shall private property be taken for public use, without just compensation

The Fifth Amendment

- Indictment by a Grand Jury
- Double jeopardy
- Self-incrimination
  - *Miranda v. Arizona* (1966)
- **Due Process**
- Eminent domain

The Sixth Amendment

In all criminal prosecutions, the accused shall enjoy the right to a speedy and public trial, by an impartial jury of the State and district wherein the crime shall have been committed, which district shall have been previously ascertained by law, and to be informed of the nature and cause of the accusation; to be confronted with the witnesses against him; to have compulsory process for obtaining witnesses in his favor, and to have the Assistance of Counsel for his defence

The Sixth Amendment

- a speedy trial
- a public trial
- an impartial jury
- a jury from the state where the alleged offense occurred
- the right to receive notice of accusations
- the right to confront witnesses
- the right to compel witnesses to testify
- the right to the assistance of counsel
  - public defenders

The Seventh and Eighth Amendment

- The Seventh Amendment addresses the rights of individuals engaged in civil (non-criminal) litigation
- The Eighth Amendment: ***Excessive bail shall not be required, nor excessive fines imposed, nor cruel and unusual punishments inflicted***

The Ninth Amendment

> *The enumeration in the Constitution, of certain rights, shall not be construed to deny or disparage others retained by the people*

- Different interpretations of the Ninth Amendment:
  - Protect certain *natural* or *common-law rights* not enshrined in the Constitution
    - *Right to privacy*
  - *It is a common error, but an error nonetheless, to talk of 'ninth amendment rights.' The ninth amendment is not a source of rights as such; it is simply a rule about how to read the Constitution* - Laurence Tribe

The Tenth Amendment

> *The powers not delegated to the United States by the Constitution, nor prohibited by it to the States, are reserved to the States respectively, or to the people*

- The federal government has both enumerated and implied powers, but where the federal government does not (or chooses not to) exercise power, the states may do so

SELECTIVE INCORPORATION

The Bill of Rights and the States

- *Barron v. Baltimore* (1833)
  - The Bill of Rights applies only to the federal government
- Fourteenth Amendment
  - **Selective incorporation**: the gradual process of making some guarantees of the Bill of Rights apply to state governments
  - **Due process clause**: *nor shall any State deprive any person of life, liberty, or property, without* ***due process of law***

Selective Incorporation History

Freedom/Right	Amendment	Case	Year
Of speech and press	First	*Gitlow v. New York*	1925
To have attorney in capital cases	Sixth	*Powell v. Alabama*	1932
To exercise any religion	First	*Hamilton v. Regents of the University of California*	1934
Of assembly and petition	First	*DeJonge v. Oregon*	1937
From establishment of religion	First	*Everson v. Board of Education*	1947
To have a public trial	Sixth	*In re Oliver*	1948
From unreasonable searches and seizures	Fourth	*Mapp v. Ohio*	1961
From cruel and unusual punishments	Eighth	*Robinson v. California*	1962
To have attorney for felony cases	Sixth	*Gideon v. Wainwright*	1963
From self-incrimination	Fifth	*Malloy v. Hogan*	1964
To confront witnesses	Sixth	*Pointer v. Texas*	1965
To have an impartial jury trial	Sixth	*Parker v. Gladden*	1966
To have a speedy trial	Sixth	*Klopfer v. North Carolina*	1967
To compel witnesses to testify	Sixth	*Washington v. Texas*	1967
To trial by jury	Sixth	*Duncan v. Louisiana*	1968
From double jeopardy	Fifth	*Benton v. Maryland*	1969
To have attorney for charges that could result in jail time	Sixth	*Argersinger v. Hamlin*	1972
Right to bear arms	Second	*McDonald v. Chicago*	2010